

Approved as to
form only:
[Signature]
Date: 5/23/18

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AMENDING RESOLUTION NO. 5680 PERTAINING TO ADOPTION OF A REVISED CHEYENNE-LARAMIE COUNTY BOARD OF HEALTH FEE SCHEDULE FOR VARIOUS SERVICES AND INSPECTIONS."

WHEREAS, Wyo. Stat. § 35-1-305(a) authorizes local boards of health to fix and charge reasonable fees for services; and

WHEREAS, the Cheyenne-Laramie County Board of Health currently provides inspection services for food service operations, body art, childcare facilities, campgrounds, small wastewater systems, swimming pools/spas, massage establishments and therapists, non-hazardous liquid waste haulers, and rural property; and

WHEREAS, the Cheyenne-Laramie County Board of Health wishes to amend its health fee schedule for services, inspections and permitting as previously adopted by City Resolution No. 5680, approved by the governing body on May 8, 2015, by revising the fee schedule for certain services, inspections and permits in accordance with the attached Exhibit A; and

WHEREAS, the public hearing required by Wyo. Stat. § 35-1-305(c) was conducted on May 15, 2018, by the Cheyenne-Laramie County Board of Health; and

WHEREAS, prior to services, permit and inspection fees being assessed, the fee schedule must be adopted by the City of Cheyenne and Laramie County Board of Commissioners for their respective jurisdictions.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the revised health fee schedule for inspection services, permit fees and other various services provided by the Cheyenne-Laramie County Board of Health, which schedule is set forth in Exhibit A to this resolution, is hereby adopted.

PRESENTED, READ AND ADOPTED this ____ day of _____, 2018

Marian J. Orr, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

CHEYENNE-LARAMIE COUNTY ENVIRONMENTAL HEALTH FEE SCHEDULE

STATE FOOD SERVICE LICENSE (85%)		Current	Proposed	Increase
New Application		\$100.00		
Renewal		\$ 50.00		
Temporary		\$ 25.00		
FOOD SERVICE:				
FACILITY SITE PLAN				
Supermarket/Multivenue		\$400.00	\$480.00	80.00
Full Service		\$300.00	360.00	60.00
Fast Food		\$200.00	240.00	40.00
Specialty		\$150.00	180.00	30.00
Remodel		\$100.00	120.00	20.00
Inspection Fee per Inspection per license (based on adopted Risk Assessment)				
(no charge for complaint or first follow-up)				
Prepackaged & Walk-thru		\$ 45.00	55.00	10.00
Fast Food		\$ 70.00	85.00	15.00
Full Service		\$100.00	120.00	20.00
Multiple Venues		\$130.00	155.00	25.00
2 nd Follow-up		\$ 40.00	100.00	60.00
STATE POOL LICENSE (85%)				
New Application		\$100.00		
Renewal		\$ 50.00		
POOLS/SPAS:				
FACILITY SITE PLAN				
New Pool		\$300.00	360.00	60.00
New Spa		\$200.00	240.00	40.00
Addition/Remodel		\$100.00	120.00	20.00
Inspection Fee per Inspection per license				
(no charge for complaint or first follow-up)				
Routine		\$ 90.00	110.00	20.00
TRAINING				
PROGRAM TRAININGS				
Per Person		\$10.00	15.00	5.00
All training including ServSafe				
LOCAL HEALTH CAMPGROUND PERMIT (100%)				
New Application		\$ 150.00	180.00	30.00
Renewal		\$ 75.00	90.00	15.00
Temporary Less Than 20 Spaces		\$ 75.00	90.00	15.00
Temp Twenty or More Spaces		\$ 150.00	180.00	30.00
CAMPGROUND:				
FACILITY SITE PLAN				
New Facility 50+ spaces		\$200.00	240.00	40.00
New Facility <50 spaces		\$100.00	120.00	20.00

DAYCARE FACILITIES:	Current	Proposed	Increase
FACILITY SITE PLAN CHILD CARE CENTER			
Daycare Centers	\$200.00	\$240.00	40.00
Inspection Fee per Inspection per license (based on daycare type)			
Child Care Center	\$ 75.00	90.00	15.00
Family Child Care Center	\$ 50.00	60.00	10.00
Family Child Care Home	\$ 35.00	45.00	10.00
Walk-thru Inspection for Centers	\$ 35.00	45.00	10.00
SMALL WASTEWATER			
Residential Inspection	\$300.00	360.00	60.00
Commercial Inspection	\$300.00	360.00	60.00
Contractor Test / includes book	\$250.00	300.00	60.00
Contractors Renewal	\$150.00	180.00	30.00
Partial Inspections	\$ 50.00	60.00	10.00
PROPERTY INSPECTION*			
Well and Septic Inspection			
Community Water Supply	No Lab Fees will be charged		
All Inspections	\$190.00+ 60.00 Lab fee	230.00+ 60.00 Lab fee	
Lead Tests	\$25.00 Expedited \$40.00		
Expedited Lab Fee	\$30.00 (1.5X lab fee)		
Water Update	\$85.00	105.00	20.00
Fees include up to Four (4) site visits. Additional site visits to be charged at \$25.00 per trip plus any labs fees		30.00	5.00
SUBDIVISION/PLAT REVIEWS:			
SUBDIVISION SITE PLAN (Fees based per subdivision and will not be charged separately for each preliminary and/or final plats. Replats will be charged the review fee of \$200.00 but the per lot fee will be waived if lots are equal to or larger in size. Lots that are smaller and still using small wastewater systems will be required to pay the per lot fee).			
Public Sewer proposed	\$100.00		
Without Public Sewer	\$200.00 + \$10.00 per lot	Max Fee \$500.00	
NON HAZARDOUS LIQUID WASTE HAULER LICENSE			
New	\$250.00	300.00	50.00
Renewal	\$150.00	180.00	30.00
BODY ART ARTIST			
New Application	\$100.00	120.00	20.00
Renewal & Inspection	\$ 50.00	60.00	10.00
BODY ART ESTABLISHMENT			
New Application	\$100.00	120.00	20.00
Renewal & Inspection	\$ 50.00	60.00	10.00
New Plan Review	\$100.00	120.00	20.00
Remodel Plan Review	\$ 50.00	60.00	10.00
MASSAGE THERAPIST			
New License Application	\$100.00	120.00	20.00
License Renewal	\$ 50.00	60.00	10.00
MASSAGE ESTABLISHMENT (City & County)			
New License Application	\$100.00	120.00	20.00
License Renewal	\$ 50.00	60.00	10.00
COPY			
One Sheet	\$1.00**		

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RECORDS RESEARCH

Per Hour

Current**Proposed****Increase**

\$ 25.00**

\$30.00**

\$10.00

CONSULTING FEE FOR VARIANCE AND OR 201 EXCEPTIONS**Variance**

\$ 50.00

60.00

10.00

“201” exceptions

\$350.00

420.00

70.00

COUNTY CLERK REAL ESTATE RECORDING**First page**

\$12.00

Each additional page

\$ 3.00

INSUFFICIENT FUNDS/RETURNED CHECK

Per Check

\$30.00

LATE FEE ON INVOICES

\$30.00

50.00

20.00

TOTAL COLIFORM / E.COLI BACTERIA TEST

\$10.00

*Other Lab Fees May Apply Increases in lab fees are pass through fees and may increase costs.

** Respective Department or EH Division head have the authority to waive or reduce these fees dependent upon circumstances

\$51,060.00*****KEY**

means fee set by State of Wyoming

BOH Announcement
 BOH adoption
 City Council Resolution June
 County Commissioners Resolution June
 Effective date July 1, 2018

X:/Envdata/shared/fees/Adopted Env Health Fee Schedule Appen...

**CHEYENNE-
LARAMIE COUNTY
HEALTH
DEPARTMENT**

100 CENTRAL AVENUE
CHEYENNE, WY 82007
307-633-4000

April 15, 2018

To whom it may concern

The Cheyenne-Laramie County Health Departments Division of Environmental Health is requesting consideration for an additional inspector (1FTE). The Division of Environmental Health will propose paying for this position through an increase in the current fee structure as well as generating additional fees that could be collected through additional public health services. A minimal amount of grant funding may also be used to help fund the position. The Division has been able to maintain our statutorily required inspections each year but has been severely stressing staff, as results of the October 2016 employee survey show. While maintaining routine inspections we often find that the division does not have the ability to do many of the follow-up and subsequent follow-ups as needed. Follow-up inspections are very important as they are the opportunity for the inspector and the operators to solve problems that will help obtain managerial control of the establishments as well as assuring that the establishment is providing a safe food product. These inspections are most crucial in the establishments that have the most problems. Conversations have occurred many times during the past few years of the need to consult with and even use enforcement actions against establishments that have a high level of violations. Inspection staff will also find themselves spending more time at facilities with the adoption of new code requirements including: Food Safety Managers, no bare hand contact with RTE food and vomit/fecal event policies. New code requirements take more time per inspection and when an operator refuses to comply with the regulations, enforcement actions will take even longer.

Environmental Health has also been trying to achieve compliance with the FDA National Retail Standards an effort that has been supported by upper level management as well as the Board of Health. The division has been making progress with these standards but have obstacles ahead when trying to achieve additional standards. Standard 4 will require on-going quality assurance inspections between the supervisor and inspectors, Standard 6 requires that all inspections are completed including the follow-ups that are not currently getting completed as needed, Standard 8 sets an optimum number of inspections per inspector which is currently exceeded without even including inspections done outside of the food program such as septic and mortgage inspections. Standard 9 is a risk factor study and requires inspections that only look at the risk factors at point A in time and then compares them to another set of inspections completed at point b in time to compare progress. With current workload there is no time to perform these extra inspections. The inspection numbers that the division is completing (keeping in mind the fact that we are only achieving the bare minimum), only represent one program. The division has 15 additional programs in which we complete inspections and at least eight



additional programs that require staff to be available to help inform, answer questions, or provide other public health services to the public or other government agencies.

The Division of Environmental Health could also provide more public outreach if the current staff was not so taxed with their current assignments. It is difficult for personnel to take the time to write articles for the paper appear on radio or television or even take the time to plan and produce a blurb for the website or social media. All of these would help the citizens of the community, build trust of the public and generally shed a better image of the overall department.

An additional factor to consider with capacity building is that of Public Health Accreditation. The Public Health Accreditation Board has a crosswalk thru the National Association of City County Health Officials that says a department meets certain requirements of accreditation after they comply with FDA Standards. Failing to meet FDA Standards will make it more difficult for the WHOLE department to meet accreditation requirements.

The Division of Environmental Health has proposed approximately \$51000 in fee increases to help fund this additional inspector. We are also looking at the potential income this FTE could generate based on public health risk factor food service inspections which could be increased at establishments posing the highest risk of creating a food borne illness outbreak. Approximately 50 additional inspections could generate an additional \$4000 to help fund the position (based on current fees).

Environmental Health would also have the ability to do more follow-up inspections and 2nd follow-ups that have not been completed due to current workload. An additional inspector would allow these inspections to be completed in a more timely and consistent manner. Additional follow-up inspections could generate an additional \$1000 in the current fee structure. 2nd follow-up inspection fees could also be increased to \$100.00 similar to other local health departments in Wyoming; this increase would generate additional funding for the program as well as building an incentive for establishments to correct violations.

Other areas this position could improve upon include temporary food events. Currently many are going uninspected due to current workload. Having an additional inspector could also free up staff to attend and inspect temporary food events outside of CFD, the County Fair and Superday. If a fee structure is created to charge inspection fees for temporary food permits additional fees could be generated to help fund this position along with the fact that having more manpower may allow us to pursue more temporary vendors that are now operating outside of the regulations.

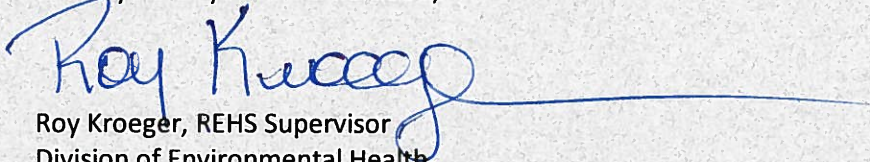
Additionally a risk based inspection system could easily be adopted to increase inspections on swimming pools and spas. Currently a statutory required (1) minimum number of inspections are being done at many pools and spas. Many of these establishments are consistently out of compliance with water quality standards that could lead to more illness within our community and to the travelling public.

With an additional FTE Environmental Health could look at creating an ongoing inspection program for massage establishments and/or massage therapists. Currently massage is only inspected one time when they first start the business and if someone complains about them. After the initial inspection they are

only asked to submit paperwork to renew the license. If time allowed for additional inspections the program could better protect the public's health. Some of the additional inspections could warrant higher fees that could offset the cost of the inspections.

Lastly the Division of Environmental Health could look at cost savings by reorganizing our current inspection schedules and who is assigned to go where and when. Currently the Division is in a mode of fighting fires, inspections are done where they are most overdue and consultations are done where the public is requesting our attention the most. Having an additional FTE would allow us to plan inspections and services in a more geographical manner which could save travel time, costs and vehicle use. Some cost savings could also be realized through the sharing of resources that we currently do not have the ability to do. An additional inspector will help the division provide overdue public health services as well as preparing for expected growth as the economy is expands.

Thank you for your consideration,

A handwritten signature in blue ink, reading "Roy Kroeger", with a long horizontal flourish extending to the right.

Roy Kroeger, REHS Supervisor
Division of Environmental Health
Cheyenne-Laramie County Health Department